

COMMITTEE ON GOVERNMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2745
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 41-1152, Arizona Revised Statutes, is amended
3 to read:

4 41-1152. Sworn testimony; immunity of witnesses

5 A. ALL TESTIMONY PRODUCED PURSUANT TO THIS CHAPTER THAT IS
6 AUTHORIZED BY THE SENATE OR THE HOUSE OF REPRESENTATIVES SHALL BE SWORN
7 TESTIMONY UNDER THE PENALTY OF PERJURY.

8 B. Testimony or evidence produced pursuant to this article may not
9 be admitted in evidence or used in any manner in any criminal prosecution
10 against a natural person sworn and examined before either house of the
11 legislature or any committee of either house, except for perjury, false
12 swearing, tampering with physical evidence or any other offense committed
13 in connection with an appearance required by section 41-1151 if it
14 constitutes either the compelled testimony or the private papers of such
15 person which THAT would be privileged evidence pursuant to the fifth
16 amendment of the Constitution of the United States or article II, section
17 10, of the Constitution of Arizona, and such person claimed the privilege
18 against self-incrimination and a majority of the committee, after
19 consultation with the attorney general, votes to order such person to
20 testify or produce such papers.]>>

21 Section 1. Section 41-1153, Arizona Revised Statutes, is amended to
22 read:

23 41-1153. Disobedience of subpoena as legislative contempt

24 A. If a witness neglects or refuses to obey a legislative subpoena,
25 or, appearing, neglects or refuses to testify, ~~the senate or the house~~
26 ~~may, by resolution entered in the journal, commit him~~ [UNLESS ANOTHER
27 PROCEDURE IS PROVIDED BY THE RULES OF EITHER HOUSE OF THE LEGISLATURE,]
28 THE WITNESS MAY BE COMMITTED for contempt BY EITHER OF THE FOLLOWING:

1 1. AFTER THE WITNESS IS GIVEN NOTICE AND AN OPPORTUNITY FOR A
2 HEARING TO PRESENT EVIDENCE, AT THE DISCRETION OF THE CHAIRPERSON, TO SHOW
3 CAUSE AS TO WHY THE WITNESS IS NOT IN CONTEMPT, AN ORDER OF CONTEMPT BY
4 ~~THE CHAIRPERSON OF~~ ANY COMMITTEE OR THE PRESIDENT OF THE SENATE OR
5 SPEAKER OF THE HOUSE OF REPRESENTATIVES THAT FINDS THAT THE WITNESS HAD
6 KNOWLEDGE OF THE SUBPOENA, HAD THE ABILITY TO COMPLY WITH THE SUBPOENA AND
7 FAILED TO COMPLY WITH THE SUBPOENA.

8 2. A RESOLUTION ENTERED IN THE JOURNAL BY THE SENATE OR THE HOUSE
9 OF REPRESENTATIVES.

10 B. A witness ~~neglecting~~ WHO NEGLECTS or ~~refusing~~ REFUSES to attend
11 in obedience to a subpoena may be arrested by the sergeant-at-arms ~~[OR A~~
12 ~~COUNTY SHERIFF]~~ and brought before the senate or house ~~upon~~ OF
13 REPRESENTATIVES ON authority of ~~[EITHER OF THE FOLLOWING:~~

14 1.] A copy of the ORDER OF CONTEMPT THAT ~~[SHALL BE]~~ [IS] SIGNED BY
15 THE CHAIRPERSON OR THE PRESIDENT OF THE SENATE OR THE SPEAKER OF THE HOUSE
16 OF REPRESENTATIVES AND THAT ~~[SHALL BE]~~ [IS] COUNTERSIGNED BY THE SECRETARY
17 OF THE SENATE OR CHIEF CLERK OF THE HOUSE OF REPRESENTATIVES~~[.]~~ ~~[OR ON~~
18 ~~AUTHORITY OF]~~

19 [2.] A COPY OF THE resolution THAT ~~[SHALL BE]~~ [IS] signed by the
20 president OF THE SENATE or speaker OF THE HOUSE OF REPRESENTATIVES~~,~~ and
21 THAT ~~[SHALL BE]~~ [IS] countersigned by the secretary OF THE SENATE or chief
22 clerk OF THE HOUSE OF REPRESENTATIVES.

23 Enroll and engross to conform

24 Amend title to conform

And, as so amended, it do pass

WALT BLACKMAN
CHAIRMAN

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02/18/2026

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